

JACKSON, J., dissenting

accountability paradigm is based. Worse still, promoting more vigor from Presidents in exercising their official duties—and, presumably, less deliberation—invites breathtaking risks in terms of harm to the American people that, in my view, far outweigh the benefits.

This is not to say that the majority is wrong when it perceives that it can be cumbersome for a President to have to follow the law while carrying out his duty to enforce it. It is certainly true that “[a] scheme of government like ours no doubt at times feels the lack of power to act with complete, all-embracing, swiftly moving authority.” *Youngstown*, 343 U. S., at 613 (Frankfurter, J., concurring). But any American who has studied history knows that “our government was *designed* to have such restrictions.” *Ibid.* (emphasis added). Our Constitution’s “separation of powers was adopted by the Convention of 1787, not to promote efficiency but to preclude the exercise of arbitrary power. The purpose was, not to avoid friction, but . . . to save the people from autocracy.” *Myers v. United States*, 272 U. S. 52, 293 (1926) (Brandeis, J., dissenting).

Having now cast the shadow of doubt over when—if ever—a former President will be subject to criminal liability for any criminal conduct he engages in while on duty, the majority incentivizes all future Presidents to cross the line of criminality while in office, knowing that unless they act “manifestly or palpably beyond [their] authority,” *ante*, at 618, they will be presumed above prosecution and punishment alike.

But the majority also tells us not to worry, because “[l]ike everyone else, the President is subject to prosecution in his *unofficial* capacity.” *Ante*, at 639 (emphasis added). This attempted reassurance is cold comfort, even setting aside the fact that the Court has neglected to lay out a standard that reliably distinguishes between a President’s official and unofficial conduct. Why? Because there is *still* manifest inequity: Presidents alone are now free to commit crimes when